

**UNITED STATES PATENT AND TRADEMARK OFFICE
BEFORE THE DIRECTOR OF THE
UNITED STATES PATENT AND TRADEMARK OFFICE**

In the Matter of	)	
	)	
Brian E. Mitchell,	)	Proceeding No. D2026-16
	)	
Respondent	)	
_____	)	

FINAL ORDER

The Director of the Office of Enrollment and Discipline (“OED Director”) for the United States Patent and Trademark Office (“USPTO” or “Office”) and Mr. Brian E. Mitchell (“Respondent”) have submitted a Proposed Settlement Agreement (“Agreement”), executed by Respondent on July 20, 2026, and executed by the OED Director on July 21, 2026, to the Under Secretary of Commerce for Intellectual Property and Director of the United States Patent and Trademark Office (“USPTO Director”) for approval.

The Agreement, which resolves all disciplinary action by the USPTO arising from the stipulated facts set forth below, is hereby approved. This Final Order sets forth the parties’ stipulated facts, legal conclusions, and sanctions.

Jurisdiction

1. At all times relevant hereto, Respondent of San Francisco, California has been a registered patent attorney (Registration Number 50,612) and an attorney licensed by, and in active status with, the State Bar of California (Bar Number 190095). Respondent is subject to the USPTO Rules of Professional Conduct, 37 C.F.R. § 11.101 *et seq.*
2. The USPTO Director has jurisdiction over this matter pursuant to 35 U.S.C. §§ 2(b)(2)(D) and 32 and 37 C.F.R. §§ 11.19, 11.20, and 11.26.

Joint Stipulated Facts

3. Respondent of San Francisco, California, is a registered practitioner (Registration Number 50,612) and an attorney licensed by, and in active status with, the State Bar of California (Bar Number 190095).
4. Respondent was registered with the USPTO as a patent attorney in 2002 but has never prosecuted a patent or trademark application or appeared before the USPTO Trademark Trial and Appeal Board or the USPTO Patent Trial and Appeal Board.
5. Respondent represented the owner of U.S. patents, who was the plaintiff in a patent infringement case before the United States District Court for the Eastern District of Pennsylvania

("the Court"), captioned *Magpul Industries Corp. v. Mission First Tactical Group, Inc. et al.*, No. 2:24-cv-5551 (E.D. Pa. July 28, 2025).

6. When preparing the plaintiff's portion of a Joint Claim Construction Chart ("the JCCC"), Respondent used one generative artificial intelligence ("AI") tool to assist with drafting proposed claim constructions of certain claim terms of the patent in question. Respondent then used a second AI tool to review the plaintiff's portion of the document.

7. The AI-generated sections of the plaintiff's portion of the JCCC included citations to the intrinsic evidence of the patent, including the patent's specification, figures, and prosecution history. At least some of the AI-generated citations were erroneous.

8. Thereafter, the parties to the litigation determined that there were substantial errors in the plaintiff's citations to the intrinsic evidence in support of its proposed constructions. Specifically, many of the plaintiff's citations, quotations, and parentheticals referred to portions of the record that did not exist or were inaccurately attributed.

9. When these errors were identified, Respondent reviewed the plaintiff's portion of the JCCC, identified and acknowledged additional erroneous citations, and committed to providing same-day corrections. A revised claim chart was circulated the following day with the inaccurate citations removed and replaced with accurate citations to the intrinsic record previously submitted to the Court.

10. Although Respondent represents that the originally proposed constructions themselves were grounded in the claims, specification, figures, and prosecution history, Respondent acknowledged that the erroneous citations were not sufficiently checked against the source documents.

11. Respondent represents that the mistakes were quickly corrected and that his client suffered no prejudice in the action. He also represents that the lawsuit was later dismissed with prejudice in view of a settlement between the parties.

12. The Court did not impose sanctions due to the inaccurate AI-generated citations on Respondent or his client.

Additional Considerations

13. Respondent acted promptly to acknowledge and correct the inaccurate claims construction citations generated by AI.

14. Respondent promptly took full responsibility for the errors in the claim construction document.

15. In an effort to mitigate any potential harm to his clients and as further evidence of Respondent's accountability in the matter, Respondent requested that any sanction by the Court be directed solely at him and not at his client, which he represented had played no role in the error and had acted in good faith throughout.

16. Respondent has no history of discipline before the USPTO, and he represents that, to date, he has not been disciplined by any other jurisdiction or tribunal before which he has practiced.
17. Respondent cooperated fully with OED's investigation, *e.g.*, by providing full and candid responses to OED's requests for information and agreeing to meet with OED to discuss the matter.
18. Respondent has acknowledged his errors, demonstrated genuine contrition, and accepted responsibility for his acts and omissions.

Joint Legal Conclusions

19. Respondent acknowledges that, based on the information contained in the joint stipulated facts, above, that Respondent's acts and omissions violated the following provisions of the USPTO Rules of Professional Conduct:

- a. 37 C.F.R. § 11.101 (a practitioner shall provide competent representation) by, *inter alia*, (1) not fully understanding the actual or potential inherent risks (*e.g.*, mistakes, hallucinated citations or quotations, etc.) of AI-based legal research and drafting tools used in connection with representation of a client; (2) not adequately reviewing the citations to the intrinsic record (*e.g.*, the patent's specification, figures, and prosecution history) in a paper submitted to a tribunal in connection with a legal proceeding; and (3) not fully understanding the requirement to conduct an inquiry reasonable under the circumstances when presenting a paper to a tribunal;
- b. 37 C.F.R. § 11.103 (a practitioner shall act with reasonable diligence) by, *inter alia*, (1) not making reasonable use of AI-based legal research and drafting tools in connection with representation of a client; (2) not adequately reviewing the citations to the intrinsic record (*e.g.*, the patent's specification, figures, and prosecution history) in a paper submitted to a tribunal in connection with a legal proceeding; and (3) prior to presenting the client's portion of the claim construction document to the district court, not conducting an inquiry reasonable under the circumstances in order to certify that the citations offered in support of the client's proposed claim construction were warranted by fact or law;
- c. 37 C.F.R. § 11.804(c) (prohibiting conduct involving misrepresentation) by, *inter alia*, presenting inaccurate support, including false citations and quotations from the intrinsic record (*e.g.*, the patent's specification, figures, and prosecution history), for the client's proposed claim constructions to the district court; and
- d. 37 C.F.R. § 11.804(d) (prohibiting conduct prejudicial to the administration of justice) by, *inter alia*, (1) prior to presenting a paper to the district court, not conducting an inquiry reasonable under the circumstances in order to certify that the citations offered in support of the client's proposed claim construction were

warranted by fact or law, and (2) presenting erroneous citations and quotations to the district court in support of the client's proposed claim constructions.

Agreed-Upon Sanction

20. Respondent freely and voluntarily agreed, and it hereby ORDERED that:

- a. Respondent is hereby publicly reprimanded;
- b. The OED Director shall electronically publish the Final Order at the OED's electronic FOIA Reading Room, which is publicly accessible through the Office's website at: <https://foiadocuments.uspto.gov/oed/>;
- c. The OED Director shall publish a notice in the *Official Gazette* that is materially consistent with the following:

Notice of Public Reprimand

This notice concerns Brian E. Mitchell of San Francisco, California, who is a registered patent attorney (Registration Number 50,612). Mr. Mitchell is hereby reprimanded for violating 37 C.F.R. §§ 11.101 (a practitioner shall provide competent representation), 11.103 (a practitioner shall act with reasonable diligence), 11.804(c) (engaging in conduct involving misrepresentation), and 11.804(d) (engaging in conduct prejudicial to the administration of justice). The violations are predicated on presenting a claim construction document in *Magpul Industries Corp. v. Mission First Tactical Group, Inc. et al.*, No. 2:24-cv-5551 (E.D. Pa.) that contained inaccurate citations to portions of the underlying patent's intrinsic record.

Mr. Mitchell used generative artificial intelligence ("AI") tools to assist with preparation of a claim construction chart, which resulted in AI-generated citations that inaccurately cited to and quoted from the patent's intrinsic evidence, including the specification, figures, and file history. Mr. Mitchell subsequently failed to conduct an adequate review of the claim construction document for accuracy prior to signing the document and submitting it to the district court. When the inaccuracies surfaced, Mr. Mitchell acted promptly to acknowledge and correct the inaccurate claim construction citations generated by AI. He accepted full responsibility for the errors in the claim construction document.

Registered practitioners and all practitioners who are engaged in practice before the USPTO should be mindful of their ethical obligations under the USPTO Rules of Professional Conduct whenever using AI tools in their law practice. Such rules may include, but are not limited to, the following:

- 37 C.F.R. § 11.101 (competence), such that a practitioner reasonably is to understand the actual or potential inherent risks (*e.g.*, mistakes, biased or unreliable results, hallucinations, unintended disclosures of information relating to the representation of clients) of the AI tool(s) he or she is using when representing a client; and
- 37 C.F.R. § 11.103 (diligence), § 11.301 (meritorious claims and contentions), § 11.303 (candor toward the tribunal), § 11.804(c) (misrepresentation), and § 11.804(d) (conduct prejudicial to the administration of justice, including adversely affecting the integrity of the USPTO's patent issuance and trademark registration processes) such that a practitioner is to reasonably and carefully review AI-generated documents or portions thereof for accuracy, and to comply with his or her obligations under 37 C.F.R. § 11.18 (which, in relevant part, substantially parallels Rule 11 of the Federal Rules of Civil Procedure) to conduct an inquiry reasonable under the circumstances to ensure that, prior to presenting documents to the USPTO, the factual and legal contentions presented therein are warranted.

Practitioners are further cautioned that the potential pitfalls of AI-generated citation errors are not limited to extrinsic sources such as statutes, regulations, and case law, but may also extend to the intrinsic evidence of patent and trademark applications and their file wrappers.

In short, when contemplating the use of AI in one's legal practice, practitioners may find useful the succinct warning provided by the Ninth Circuit Court of Appeals: "[B]e aware of the risks of overreliance on generative AI, read everything cited in a ... filing—whether drafted by generative AI or not—and disclose quickly and transparently generative AI hallucinations that are inadvertently included in [such] filings." *Lnu v. Blanche*, No. 24-4790 (9th Cir. 2026).

This action is the result of a settlement agreement between Brian E. Mitchell and the OED Director pursuant to the provisions of 35 U.S.C. §§ 2(b)(2)(D) and 32 and 37 C.F.R. §§ 11.19, 11.20, and 11.26. Disciplinary decisions involving practitioners are posted for public reading at the Office of Enrollment and Discipline Reading Room accessible at: <https://foiadocuments.uspto.gov/oed/>;

d. Nothing in the Proposed Settlement Agreement or this Final Order shall prevent the Office from considering the record of this disciplinary proceeding, including the Final Order: (1) when addressing any further complaint or evidence of the same or similar misconduct concerning Respondent brought to the attention of the Office, and (2) in any future disciplinary proceeding against Respondent (A) as an aggravating factor to be

taken into consideration in determining any discipline to be imposed, and/or (B) to rebut any statement or representation by or on Respondent's behalf;

e. Based on Respondent's agreement to do so, Respondent waives all rights to seek reconsideration of the Final Order under 37 C.F.R. § 11.56, waives the right to have the Final Order reviewed under 37 C.F.R. § 11.57, and waives the right otherwise to appeal or challenge the Final Order in any manner; and

f. The OED Director and Respondent shall each bear their own costs incurred to date and in carrying out the terms of this Final Order.

TRICIA CHOE Digitally signed by TRICIA CHOE
Date: 2026.07.27 10:19:15 -04'00'

Tricia Choe
Associate General Counsel for General Law
United States Patent and Trademark Office

Date

on delegated authority by

John A. Squires
Under Secretary of Commerce for Intellectual Property and
Director of the United States Patent and Trademark Office

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that the foregoing Final Order was sent, on this day, to the parties in the manner indicated below:

Via first-class certified mail, return receipt requested:

Brian E. Mitchell
Mitchell + Company
575 Market St., Fl. 4
San Francisco, CA 94105-5818
Respondent

Via email:

John Ferman
Associate Solicitor
Office of the Solicitor
[REDACTED]

Paul Nguyen-Ba
Senior Counsel for Patent and Trademark Disciplinary Matters
Office of Enrollment and Discipline
paul.nguyen-ba@uspto.gov

7/27/2026
Date


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